



CHAPTER xii.

An Act to confirm the construction by the Herts and Essex Waterworks Company Limited of certain existing waterworks to empower the Company to construct a new waterwork and raise additional money to alter and redefine the limits of supply of the Company and for other purposes.

[13th July 1944.]

WHEREAS the Herts and Essex Waterworks Company Limited (in this Act called "the Company") were by the Herts and Essex Water Act and Orders 1879 to 1932 (hereinafter in this preamble referred to as "the existing Act and Orders") empowered to construct works and to supply water within the limits in the counties of Hertford and Essex thereby prescribed:

And whereas the demand for water within the existing limits of supply of the Company has increased and is still increasing and for the better and more effectually enabling the Company to meet such increasing demand (including demands for purposes connected with the defence of the realm and the prosecution of the present war) the Company made application to the Minister of Health under the Defence (General) Regulations 1939 made in pursuance of the Emergency Powers (Defence) Act 1939 for authority to enable the Company to construct maintain and use a borehole in the parish of Roydon in the rural district of Epping in the county of Essex and to abstract water therefrom and to construct maintain and use a pumping station adjacent to the said borehole and also certain lines of pipes and the said Minister has by the Herts and Essex Water Order 1943 (hereinafter referred to as "the

^{2 & 3 Geo. 6.}
^{c. 62.}

Order of 1943 ") authorised the Company to construct the said waterworks and exercise the said powers subject to a certain limitation upon the quantity of water to be abstracted by the Company from the said borehole :

And whereas it will be necessary for the Company to continue to use for the purposes of their undertaking the said borehole pumping station and lines of pipes which have either been already completed or are in process of construction after the termination of the period of emergency which was the occasion of the passing of the Emergency Powers (Defence) Act 1939 and it is accordingly expedient to sanction and confirm the construction by the Company of the said works and to authorise the Company to maintain the same :

And whereas it is expedient to authorise the Company to construct and maintain the new waterwork and to acquire the lands hereinafter described :

And whereas it is expedient that the limits for the supply of water by the Company should be altered and redefined :

And whereas a statement of the share and loan capital which the Company are authorised to raise and had on the thirty-first day of December nineteen hundred and forty-two raised for the purposes of their undertaking under the existing Act and Orders is set forth in the Schedule to this Act and it is expedient that the Company should be authorised to raise further moneys for the purposes of this Act and for the general purposes of their undertaking :

And whereas it is expedient that such further provision be made and such further powers should be conferred upon the Company as are in this Act contained :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas a plan and section of the new waterwork authorised by this Act showing the line and level thereof and a book of reference to the plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk to the county council of Essex and that plan section and book of reference are in this Act respectively referred to as the deposited plan section and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Preliminary.

1. This Act may be cited as the Herts and Essex Water Short and Act 1944 and the Herts and Essex Water Act and Orders ^{collective} 1879 to 1932 and this Act may be cited together as the Herts ^{titles.} and Essex Water Acts and Orders 1879 to 1944.

2. The following Acts and parts of Acts (so far as the same ^{Incorporation} are applicable for the purposes and are not inconsistent with ^{of Acts.} the provisions of this Act or any former Act or Order of or relating to the Company) are hereby incorporated with this Act (namely):—

(1) The Waterworks Clauses Acts 1847 and 1863 except ^{10 & 11 Vict.} the words “ with the consent in writing of the owner ^{c. 17.} or reputed owner of any such house or of the agent ^{26 & 27 Vict.} of such owner ” in section 44 of the Waterworks ^{c. 93.} Clauses Act 1847:

(2) The Lands Clauses Acts except sections 127 to 131 of the Lands Clauses Consolidation Act 1845 relating ^{8 & 9 Vict.} to the sale of superfluous lands and except section 5 ^{c. 18.} of the Lands Clauses Consolidation Acts Amend- ^{23 & 24 Vict.} ment Act 1860 relating to the reduction of borrowing ^{c. 106.} powers Provided that any question of disputed compensation under the Lands Clauses Acts (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the President of the Chartered Surveyors' Institution on the application of either party.

3. In this Act the several words and expressions to which ^{Interpretation.} meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“ the Company ” means the Herts and Essex Waterworks Company Limited;

“ the undertaking ” means the undertaking of the Company as from time to time authorised;

“ the Order of 1879 ” “ the Order of 1885 ” “ the Order of 1907 ” “ the Act of 1921 ” and “ the Order of 1932 ” mean respectively the Herts and Essex Water Order 1879 confirmed by the Gas and Water Orders ^{42 & 43 Vict.} ^{c. clix.}

48 & 49 Vict.
c. lxxv.

7 Edw. 7.

c. cxiii.

11 & 12 Geo. 5.

c. cxx.

22 & 23 Geo. 5.

c. lx.

Confirmation Act 1879 the Herts and Essex Water Order 1885 confirmed by the Water Orders Confirmation Act 1885 the Herts and Essex Water Order 1907 confirmed by the Gas and Water Orders Confirmation (No. 2) Act 1907 the Herts and Essex Water Act 1921 and the Herts and Essex Water Order 1932 confirmed by the Ministry of Health Provisional Orders Confirmation (Elham Valley Water and Herts and Essex Water) Act 1932;

“ the Order of 1943 ” means the Herts and Essex Water Order 1943 made by the Minister of Health under the Defence (General) Regulations 1939;

“ the existing limits of supply ” means the limits for the supply of water by the Company as defined in the Order of 1879 and extended by the Orders of 1885 and 1907 and the Act of 1921;

“ the limits of supply ” means the limits for the time being of the Company for the supply of water;

“ the new works ” means the works authorised by the sections of this Act of which the marginal notes are respectively “ Power to construct waterwork ” and “ Subsidiary works ”;

“ the war period ” means the period for which the Emergency Powers (Defence) Act 1939 is in force.

Works lands &c.

Confirmation
of existing
waterworks.

4. The construction by the Company of the existing works next hereinafter described together with all incidental and ancillary pipes works and apparatus is hereby sanctioned and confirmed and the Company may maintain the same and may retain hold and use as part of and for the purposes of the undertaking all or any lands or any interest in lands which have been already acquired by the Company for the purposes of or in connection with the said works or any of them and the expenditure of capital by the Company for the purposes of the said works and the acquisition of the said lands and interests is hereby sanctioned and confirmed. The existing works hereinbefore referred to are situate in the county of Essex and are—

Work No. 1 A borehole and pumping station in the parish of Roydon in the rural district of Epping in the enclosure numbered in that parish 142 on the 1/2500 Ordnance map of Essex (new series) sheet N.LI.2 edition of 1920;

Work No. 2 A line of pipes commencing in the said pumping station (Work No. 1) and passing through the parishes of Roydon and Great Parndon in the

said rural district and terminating by a junction with the existing pipes of the Company at Hare Street in the last-mentioned parish;

Work No. 3 A line of pipes commencing by a junction with the existing pipes of the Company at Cock Green in the said parish of Great Parndon and terminating by a junction with the existing pipes of the Company at the southern end of Press Lane in the said parish.

5. Subject to the provisions of this Act the Company may in the line and situation and upon the lands delineated on the deposited plan and described in the deposited book of reference and according to the level shown on the deposited section make and maintain the following work in the county of Essex (that is to say):—

Power to
construct
waterwork.

Work No. 4 A well and pumping station (to be called "the Roydon pumping station") in the parish of Roydon in the rural district of Epping in the said enclosure numbered in that parish 142 on the 1/2500 Ordnance map of Essex (new series) sheet N.LI.2 edition of 1920.

6. In addition to the work authorised by the last preceding section of this Act the Company may upon in or under any lands delineated on the deposited plan make and maintain all such other wells shafts boreholes headings adits conduits pipes culverts overflows works for the treatment of water buildings machinery electric lines works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the before-mentioned work or the undertaking or necessary or expedient for augmenting or improving the supply of water but nothing in this section shall exonerate the Company from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. Provided that any electric lines works and apparatus made and maintained under the provisions of this section shall not be constructed maintained or used in such a manner as to interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Subsidiary
works.

41 & 42 Vict.
c. 76.

7. In the construction of the work authorised by the section of this Act of which the marginal note is "Power to construct waterwork" the Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plan and they may also deviate vertically from the level shown on the deposited section to any extent.

Limits of
deviation.

Period for
completion
of work.

8. If the work authorised by the section of this Act of which the marginal note is " Power to construct waterwork " is not completed on or before the first day of October one thousand nine hundred and fifty or three years after the termination of the war period whichever is the later then as from that date the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Provided that the Company may extend enlarge alter reconstruct renew or remove the said work as and when occasion may require.

Works to
form part of
undertaking.

9. Subject to the provisions of this Act the new works and the works by this Act sanctioned and confirmed and the lands thereby authorised to be held retained or acquired shall for all purposes be comprised in and form part of the undertaking.

Power to
take waters.

10. Subject to the provisions of this Act the Company may pump collect impound take use divert and appropriate for the purposes of the undertaking all underground streams springs and waters which will or may be taken or intercepted by means of the borehole and pumping station (Work No. 1) by this Act sanctioned and confirmed and of the new works or any of them.

For pro-
tection of
Metropolitan
Water Board.

11. For the protection of the Metropolitan Water Board (in this section referred to as " the Board ") the following provisions shall unless otherwise agreed in writing between the Company and the board have effect (that is to say):—

(1) Notwithstanding anything in the foregoing provisions of this Act the Company shall not under the powers of this Act—

(a) construct or make any well shaft borehole heading adit or other work for collecting or abstracting water on the westerly side of a straight line drawn from the point of intersection in the parish of Roydon of the roads respectively leading from Didgemere Common to Eastend and from Roydon to Beaumont Hall to a point on the southern bank of the Stort navigation three hundred and forty feet measured due east from the eastern side of the lock-keeper's house at the lock shown on the deposited plan on the said navigation; or

(b) extend enlarge or alter any such work as aforesaid so that any part thereof is situate on the westerly side of the said straight line:

(2) The aggregate quantity of water to be pumped by the Company by means of the borehole and pumping

station (Work No. 1) by this Act sanctioned and confirmed and of the new works or any of them shall not on an average taken over any consecutive period of twenty-eight days each of twenty-four hours reckoned from midnight exceed the quantity of one million five hundred thousand gallons per day:

- (3) The Company shall keep records of the quantity of water from time to time pumped by them as aforesaid and of the respective levels of water from time to time in the wells boreholes and shafts of which the construction is sanctioned and confirmed or authorised by this Act and such records shall at all reasonable times be open to the inspection of officers of the board who shall be at liberty to take copies thereof.

12. Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as may be required for the purposes of the new works or otherwise for the purposes of the undertaking. Power to acquire lands.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the first day of October one thousand nine hundred and forty-four or two years after the termination of the war period whichever is the later. Period for compulsory purchase of lands.

14. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees or occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof and if it appears to the justices that the omission or misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk of the county council of the administrative county of Essex and a duplicate thereof shall be deposited with the clerks of the rural district council of Epping and the parish council of Roydon and such certificate or a copy and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful Correction of errors in deposited plan and book of reference.

for the Company to take the lands and execute the works in accordance with the certificate.

Extinction
of private
rights of
way.

15.—(1) Any private right of way over land which the Company are authorised by this Act to acquire compulsorily shall if they so resolve and give notice of their resolution to the owner of the right be extinguished as from the acquisition by them of the land or as from the expiration of one month from the service of the notice whichever may be the later.

(2) The Company shall pay compensation to all persons interested in respect of any such right so extinguished and such compensation shall in case of dispute be settled in manner provided by the Lands Clauses Acts (as modified by this Act) with respect to the taking of lands otherwise than by agreement.

Power to
enter property
for survey and
valuation.

16. The Company and their surveyors officers and workmen and any person duly authorised in writing under the hand of the engineer of the Company may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken and used or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Compensation
in case of
recently
acquired
interest.

17. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the arbitrator to whom any question of disputed compensation is referred shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twentieth day of November one thousand nine hundred and forty-three if in the opinion of such arbitrator the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

As to supply
of water by
Company in
Ongar Rural
District.

18. Nothing contained in section 10 (For protection of Hertfordshire County Council) of the Order of 1907 or in any agreement made between the county council of the administrative county of Hertford and the Company thereunder existing at the date of the passing of this Act shall prevent the Company from supplying water derived either from their existing Sawbridgeworth pumping station or from the Roydon pumping station in bulk or otherwise for use within any parish in the rural district of Ongar beyond the limits of supply.

19.—(1) Within a period of two years after such day as His Majesty may by Order in Council declare to be the day on which the emergency that was the occasion of the passing of the Emergency Powers (Defence) Act 1939 came to an end the Company shall instal and bring into use plant and apparatus for ensuring that all water pumped by the Company at their existing Sawbridgeworth pumping station or at the Roydon pumping station and supplied for domestic purposes shall not at any time exceed twelve and one-half degrees of hardness according to Clark's Scale.

As to hardness
of water
supplied by
Company.

(2) As from the date of bringing into use of the said plant and apparatus the water pumped by the Company at their said pumping stations and supplied for domestic purposes shall not at any time save in case of accident breakdown or any other cause beyond the control of the Company exceed the said degree of hardness.

(3) If the Company supply any water in contravention of the provisions of this section they shall be liable on conviction on information laid by or on behalf of the council of any county or county district having jurisdiction within the limits of supply to a penalty not exceeding ten pounds for every day on which such contravention occurs. Provided that the Company shall not be liable to more than one penalty in respect of one and the same contravention.

(4) Expenditure incurred by the Company in complying with the provisions of this section shall be a circumstance affecting the undertaking for the purposes of section 16 (Revision of rates) of the Act of 1921.

20. The Company shall provide and maintain draw-off taps at their existing Sawbridgeworth pumping station and at the Roydon pumping station from which taps the medical officer of health for the council of any county or county district having jurisdiction within the limits of supply or any person authorised in writing by any such medical officer shall be entitled at any time to take samples of water for examination and the taking of any such sample and the hours and date of such taking shall be immediately thereafter communicated to the Company and duplicates of every such sample handed to them.

As to
provision of
draw-off taps.

21. For the protection of the county council of the administrative county of Essex (in this section referred to as "the council") the following provisions shall except so far as may be otherwise agreed in writing between the Company and the council apply and have effect:—

For
protection
of Essex
County
Council.

(1) In this section the signed plan means the plan which has been signed in duplicate by Messieurs T. and C. Hawksley on behalf of the Company and John E.

Lightburn on behalf of the council one copy of which has been retained by the Company and the other by the council:

- (2) Notwithstanding anything contained in this or any other Act the Company shall not except with the consent of the council erect or make or permit to be erected or made on the lands situate in the parish of Roydon in the rural district of Epping in the county of Essex delineated on the deposited plan and described in the deposited book of reference if acquired by them any building (other than boundary walls gates posts and fences) or any permanent excavation (other than workings which do not pierce the surface of the land) nearer to Harlow Road than the building line shown on the signed plan.

For mutual
protection
of Ernest
Harold
Wainwright
and others
and the
Company.

22. For the mutual protection of Ernest Harold Wainwright or other the owner or owners for the time being of the lands coloured blue on the signed plan (in this section called "the blue lands") and of Humphrey Mackworth Paul and Beatrix Viscountess Aldenham or other the owner or owners for the time being of the lands coloured green on the said plan (in this section called "the green lands") respectively on the one hand (the said several owners being in this section referred to in relation to the blue lands or the green lands owned by them respectively as "the owner") and of the Company on the other hand the following provisions shall unless otherwise agreed in writing between the Company and the owner apply and have effect:—

- (1) In this section "the signed plan" means the plan which has been signed in triplicate by Messieurs T. and C. Hawksley on behalf of the Company and by the said Ernest Harold Wainwright on behalf of himself and of the said Humphrey Mackworth Paul and Beatrix Viscountess Aldenham one copy of which has been retained by the Company and one by each of the said respective owners:
- (2) The Company shall not acquire compulsorily under the powers of this Act any part of the green lands nor any part of the blue lands except so much of the blue lands as is cross-hatched in red on the signed plan:
- (3) So much of the blue lands as is cross-hatched in red on the signed plan if acquired by the Company may be used by them for the deposit of sludge but such deposit shall not be raised to a height above the highest level of the said land:

The SCHEDULE referred to in the foregoing Act.

7 & 8 GEO. 6.

Herts and Essex Water
Act, 1944.

Ch. xii.

(A) STATEMENT OF SHARE CAPITAL ON 31ST DECEMBER 1942.

Provisional Orders regulating the raising of capital.	Description of capital.	Maximum rate of dividend.	Number of shares issued.	Nominal amount issued.	Premiums.	Amount remaining to be issued.	Total amount authorised.
Orders of 1879 1885 1907 and 1932	Original Preference £10 shares	10 per cent.	4,906	£ 49,060 0 0	£ 1,527 16 6	6 8	£209,000
	"A" Preference £10 " "	*6 per cent.	1,500	15,000 0 0			
	Additional £10 " "	5 per cent.	1,754	17,540 0 0			
	"B" Preference £10 " "	7 per cent.	1,140	11,400 0 0			
	"C" Preference £10 " "	5½ per cent.	1,600	16,000 0 0	559 12 4		
	"D" Preference £10 " "	4 per cent.	2,000	20,000 0 0	1,547 9 0		
	"D" Preference £10 " "	4¾ per cent.	2,636	26,360 0 0	10,004 15 6		
	Ordinary £10 " "	5 per cent.	4,000	40,000 0 0			
			19,536	195,360 0 0	13,639 13 4	6 8	£209,000

* Preference 5% plus 1% when ordinary shares receive not less than 4%

(B) STATEMENT OF LOAN CAPITAL ON 31ST DECEMBER 1942.

Provisional Orders regulating the raising of capital.	Description of capital.	Rate per cent. of interest.	Total amount borrowed.	Remaining to be borrowed.	Total amount authorised.
Orders of 1879 1885 1907 and 1932 The Act of 1921	Mortgage debentures	5½ per cent.	£13,000	£200	£104,500
		5 per cent.	25,000		
		4½ per cent.	8,340		
		3½ per cent.	57,960		
			£104,300		

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(P. 2487)

- (4) The owner shall not on any part of the green lands or on any part of the blue lands (including the portion of the blue lands cross-hatched in red on the signed plan if not acquired by the Company) construct at a greater depth than twenty-five feet below the surface of the ground any well or other work for taking or intercepting water.

23. The provisions of the Town and Country Planning Act 1932 (in this section referred to as "the Act of 1932") the Town and Country Planning (Interim Development) Act 1943 and any interim development order or scheme made under either of those Acts or under any enactment repealed by the Act of 1932 and for the time being in force shall have effect with reference to the powers conferred by section 5 (Power to construct waterwork) and section 6 (Subsidiary works) of this Act as if this Act had been passed before the commencement of the Act of 1932.

As to application of Town and Country Planning Acts &c. 22 & 23 Geo. 5. c. 48. 6 & 7 Geo. 6. c. 29.

Limits of supply.

24.—(1) So much of the parish of Thorley in the rural district of Braughing and of the parish of Eastwick in the rural district of Ware both in the county of Hertford as are within the existing limits of supply shall cease to be within the limits of supply and notwithstanding anything contained in the Herts and Essex Water Act and Orders 1879 to 1932 all rights and obligations of the Company with respect to the supply of water in the said areas shall cease and determine.

Alteration and redefinition of limits of supply.

(2) Accordingly on and after the date of the passing of this Act the limits of supply shall be and include the following areas as respectively constituted at the date of the passing of this Act (that is to say):—

In the county of Hertford—

The urban district of Sawbridgeworth;

In the rural district of Braughing—

Parish of High Wych:

In the county of Essex—

The urban district of Epping;

The rural district of Epping;

In the rural district of Dunmow—

Parishes of Great Hallingbury;

Hatfield Broad Oak;

Little Hallingbury;

In the rural district of Ongar—

Parishes of Abbess Roding;
Beauchamp Roding;
Bobbingworth;
Chipping Ongar;
Fyfield;
Greensted;
High Laver;
High Ongar;
Kelvedon Hatch;
Lambourne;
Little Laver;
Moreton;
Navestock;
Shelley;
Stanford Rivers;
Stapleford Abbots;
Stapleford Tawney;
Stondon Massey;
Theydon Mount.

Financial provisions and miscellaneous.

Additional
capital.

25.—(1) Notwithstanding the limitation prescribed by the Order of 1932 with respect to the amount of the share capital of the Company for the purposes of the undertaking the Company may raise for those purposes by the issue of shares or stock further capital not exceeding one hundred and fifty thousand pounds after taking into account the premiums or discounts (if any) obtained or allowed respectively on the issue thereof.

(2) The Company shall not under the powers of this Act issue any share of less nominal value than ten pounds.

Power to
borrow.

26. The amount of all money borrowed by the Company and secured by mortgage of the undertaking shall not exceed in the whole one-half part of the amount of the capital of the Company at the time actually raised in respect of the undertaking by the issue of shares or stock after taking into account the premiums or discounts (if any) obtained or allowed respectively on the issue thereof.

Application
of sections
of Order of
1932.

27. The sections of the Order of 1932 hereinafter-mentioned shall extend and apply to and with respect to all ordinary shares or stock or preference shares or stock issued under the powers of this Act as if those sections were re-enacted in this Act with the substitution of the words "the Company" for "the undertakers" "this Act" for "this Order" and

“ the passing of this Act ” for “ the commencement of this Order ” and any other necessary modifications The sections hereinbefore referred to are—

Section 7 (Limits of dividend on capital);

Section 8 (Ranking of different classes of ordinary capital for dividend);

Section 9 (New capital to be sold by auction or tender);

Section 10 (Application of moneys).

28. The Company shall not without the consent of the Minister of Health pay interest at a higher rate than five pounds per centum per annum in respect of any moneys borrowed on mortgage or raised by the creation and issue of debenture stock after the passing of this Act. Limit of interest on money borrowed.

29. The Company may apply to the purposes of this Act to which capital is properly applicable any moneys which they are already authorised to raise for the purposes of the undertaking and which may not be required by them for the purposes for which the same were authorised to be raised. Application of existing capital.

30. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing or raising capital conferred by this Act without such consent. Saving for emergency powers of Treasury. 3 & 4 Geo. 6. c. 20.

31. Paragraph (d) of subsection (2) and subsection (4) of section 1 of the Emergency Powers (Defence) Act 1939 as amended by subsection (2) of section 1 of the Emergency Powers (Defence) Act 1940 shall have effect as if this Act had been passed before the commencement of the last-mentioned Act. Application of Emergency Powers (Defence) Acts 1939 and 1940.

32.—(1) The Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur a like penalty Every penalty under this section shall be recoverable summarily. Copy of Act to be registered.

(2) There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1929 on registration of any document other than a memorandum of association or the abstract required to be delivered to the registrar by 19 & 20 Geo. 5. c. 23.

a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

Crown rights.

33. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those Commissioners on behalf of His Majesty first had and obtained for that purpose.

Repeal of
Order of 1943.

34. The Order of 1943 is hereby repealed but without prejudice to the validity of anything done in pursuance thereof.

Costs of Act.

35. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company out of revenue.